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REVISED 11/04/25

Long Beach State Foundation

BYLAWS

ARTICLE I
BYLAWS PURPOSE

These Bylaws provide a framework for governing the Long Beach State Foundation ("Corporation") in the implementation of the Articles of Incorporation, and for ensuring consistency with the California Nonprofit Public Benefit Corporation Law and other applicable statutes and regulations. These Bylaws provide rules for matters not covered by statute or regulations, alter specific default rules that control by statute in the absence of a contrary bylaw, and, to a limited extent, restate governing laws and rules as a ready reference.

ARTICLE II
CONSTRUCTION AND DEFINITIONS

Unless the context requires otherwise, the general provisions, rules of construction, and definitions in the California Nonprofit Public Benefit Corporation Law shall govern the construction of these Bylaws. Without limiting the generality of the preceding sentence, the masculine gender includes the feminine and neuter, the singular includes the plural, the plural includes the singular, and the term "person" or "individual" includes both a legal entity and a natural person.

ARTICLE III
BOARD OF DIRECTORS

Section 1. Powers

Except as otherwise provided in the Articles of Incorporation or these Bylaws, the powers of the Corporation shall be exercised, its property controlled, and its affairs conducted by or under the direction of the Board of Directors.

Section 2. Number and Qualifications

The authorized number of directors of the Corporation's Board of Directors shall not have fewer than thirteen (13) nor more than Thirty-five (35) voting members, the exact number and staggered terms to be fixed from time to time by resolution of the Board of Directors.

At no time shall a majority of the Board members be any of the following: (a) compensated by the Corporation for services rendered within the previous twelve (12) months (whether as an employee, contractor, or otherwise); (b) the spouse, an ancestor, sibling or descendant to the first degree of consanguinity, or married to such relative of any person so compensated; or (c) University officers or employees. Elected Board members shall be individuals who have demonstrated good moral character, and:

a. support the University in the form of a major gift commitment;
b. provide a commitment of financial support to the University at least at the minimum annual level as specified by the Board of Directors; and
c. provide a commitment to volunteer participation and leadership in support of the University and the Corporation.

Section 3. Manner of Selection

Ex-officio Board Members are: CSULB President; CSULB Vice President of University Relations and Development (Corporation Chief Executive Officer); CSULB Vice President of Administration and Finance (Corporation Treasurer); Corporation Chief Operating Officer; Academic Senate Chair; and Associated Students Inc. President. The Corporation Chief Operating Officer will be designated by the Chief Executive Officer in consultation with the Board Chair and University President.

The Nominations Committee shall review all non-ex-officio candidates for election to the Board and provide new member orientation. The Committee shall use its best efforts in making nominations to the Board of Directors that reflect the diversity of the University community and constituencies, as well as the breadth of academic areas from across the campus. The composition of the Board of Directors shall include categories prescribed in Section 42602(b)(2) and (c), Title 5, California Code of Regulations.

The Board of Directors shall consider and vote upon the nominations from the Nominations Committee. Directors shall be elected by a majority vote, consistent with meeting and quorum requirements set in these Bylaws.

Board elections shall normally be held annually at the last meeting of the fiscal year, unless, by resolution, the Board sets a different time. Board member terms shall be staggered in a manner established by the Board.

Section 4. Voting Rights

All Board members, including ex-officio directors, have full voting rights, consistent with the California Nonprofit Public Benefit Corporation Law.

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Section 5. Terms

Unless earlier removed, the directors shall have the following terms:

- Ex-officio directors.....term of university position or appointment termination
- Faculty (i.e. the Academic Senate Chair) .....two years
- Students (i.e. the Associated Students Inc. President) .....one year
- All other elected directors..... three-year term

Elected directors shall serve until the end of their terms or until they are re-appointed, or their successors are appointed, whichever occurs later.

Elected directors may serve three consecutive terms, or for a total of nine (9) consecutive years. Nine (9) years is the maximum total number of years a person is permitted to serve on the Board of Directors. Chair and Chair-elect years of service may have additional years of service to fulfill their term in office.

Section 6. Removal of Directors

An elected director may be removed from his or her director position by majority vote of the Board:

a. for failure to attend either in person or via telecommute three (3) meetings of the Board of Directors within a twelve (12) month period without being excused in advance there from by the Chair of the Board of Directors.
b. for cause, having been declared of unsound mind by a final order of a court, for conviction of a felony or found by final order of a court to have violated his or her duties under the California Nonprofit Public Benefit Law; or
c. without cause.

Ex-officio directors holding University positions may be removed only by action of the University President.

Section 7. Vacancies

A vacancy or vacancies in the Board shall be deemed to exist in case of the death, resignation, or removal of any director or if the authorized number of directors is increased. No reduction of the authorized number of directors shall have the effect of removing any director before expiration of the director's term of office. Any director may resign from the Board at any time by giving written notice to the Chief Executive Officer of the Corporation, and the acceptance of such resignation shall not be necessary to make it effective.

All vacancies in positions on the Board of Directors, except ex-officio voting director positions, shall be filled by a consensus of the Chief Executive Officer and the Board Chair. Vacancies occurring during a director's term shall be filled as soon as possible. Directors

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appointed to fill vacancies shall serve until the expiration of the term of the director who vacated the position. Vacancies occurring through expiration of director terms shall be filled at the next meeting of the Board of Directors.

Section 8. Financial Interest Prohibitions

No member of the Board of Directors shall be, directly or indirectly, financially interested in any contract or other transaction entered into by the Board of Directors that is not in accordance with the provisions set forth in California Education Code Sections 89906-89908. The Corporation shall develop, adopt and maintain a Conflict of Interest Policy Statement, to be reviewed annually, that complies with applicable laws, regulations, and University policies and directives.

Section 9. Service Without Compensation

Board members shall not be compensated for their service to the Corporation, except for reimbursement for expenses authorized in advanced and incurred in the performance of their duties.

ARTICLE IV
MEETINGS OF THE BOARD OF DIRECTORS

Section 1. Place of Meeting

All meetings of the Board of Directors shall be held at the principal office of the Corporation or at such other place as may be designated for that purpose from time to time by the Chief Executive Officer. Meetings of the Board of Directors and any of its committees may be in person and/or via telecommute, in whole or in part.

Section 2. Regular Meetings

Regular meetings of the Board shall be typically held at such dates and times as the Board may fix by resolution from time to time.

Section 3. Annual Meeting

An annual meeting of the Board of Directors shall be the last regular meeting of each fiscal year. Such meeting shall be for the purpose of electing directors and officers of the Corporation and for the transaction of such other business as may come before the meeting. Directors and officers elected at this meeting shall assume their offices at the conclusion of the annual meeting.

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Section 4. Special Meetings

The Board Chair, the Chief Executive Officer, or any five (5) directors, may call a special meeting of the Board by delivery of a written notice to the Board Chair or Chief Executive Officer.

Section 5. Notice of Regular and Special Meetings

The Corporation shall give notice and conduct all Board meetings in accordance with the requirements of Title 3, Division 8, Part 55, Chapter 7, Article 2 (Section 89920, et. seq.) of the Education Code, or any subsequent law enacted which governs California State University auxiliary organizations.

The Board of Directors may hold closed sessions during any regular or special meeting, as permitted by California Education Code Section 89923.

Section 6. Quorum

The presence either in person or via telecommute of a majority of the directors then in office shall constitute a quorum for the transaction of business of the Board. A meeting at which a quorum is initially present either in person or via telecommute may continue to transact business notwithstanding the withdrawal of a director or directors, if any action taken is approved by at least a majority of the required quorum for that meeting.

Section 7. Adjourned Meetings

A quorum of the Board or, if there is no quorum, a majority of the directors present may adjourn any meeting to meet again at a specified date, time, and place. Notice of the date, time, place and the business to be transacted at such meeting shall be given to any directors who were not present at the time the meeting was adjourned.

ARTICLE V
COMMITTEES

Section 1. Committees

The Board shall create the standing committees provided in this Article, and may appoint one or more other standing or special committees, each consisting of two or more voting directors, and delegate to such committees any of the authority of the Board except with respect to:

a. the filling of vacancies on the Board or on any committee;
b. the amendment or repeal of Bylaws or the adoption of any new Bylaws;
c. the amendment or repeal of any resolution of the Board which by its express terms is not so amendable or repealable;

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d. the appointment of other committees of the Board or the members thereof; or
e. the validation of any self-dealing transaction, as such transactions are defined in Section 5233(a) of the California Nonprofit Public Benefit Corporation Law, consistent with California Education Code Sections 89906, 89907 and 89908.

Any such committee must be created, and the members thereof appointed, by resolution adopted by a majority of the directors then in office, provided that a quorum is present.

The Board Chair is encouraged to serve on the standing committees. The Chief Executive Officer shall be a member of each committee, except the Audit Committee. Non-Board members may become either voting or non-voting members of committees; however, the total membership of any committee must consist of a majority of voting Board members.

Section 2. Committee Procedures

The Board shall have the power to prescribe the manner in which proceedings of any such committee shall be conducted. In the absence of such prescription, such committee shall have the power to prescribe the manner, not inconsistent with the Bylaws, in which its proceedings shall be conducted. Minutes shall be kept of each meeting of each committee.

A Committee Chair and Vice-Chair heads each committee. The Board Chair and Chief Executive Officer nominate Committee Chairs and Vice-Chair. Committee Chairs shall nominate members to their committee. Each committee shall consist of at least three (3) members, including the Committee Chair and Vice-Chair. The Board of Directors appoints committee members, consistent with these Bylaws.

Committee Chairs shall be Board members or past members of the Board, and serve three (3) year terms, with eligibility to serve an additional full term, or six (6) years total consecutive Committee Chair service.

Committee members (other than the Committee Chair, the Board Chair and Chief Executive Officer) serve one-year terms and are eligible to serve up to a total of six (6) years, unless the Executive Committee grants an exception. After one year, termed-out committee members and Committee Chairs are again eligible for committee service.

The life cycle of each committee is the fiscal year. Committees are reconstituted at the beginning of each fiscal year as prescribed in these Bylaws.

Each committee shall report all actions taken to the Board of Directors at its next regular meeting.

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Section 3. Removal of Members

The Board of Directors may remove at any time, with or without cause, a member or members of any committee.

Section 4. Executive Committee

a. Executive Committee Composition: The Board Chair, the Board Chair-elect, the Committee Chair of each standing committee, the CSULB President, the Treasurer, the Chief Executive Officer and the Chief Operating Officer. The Board Chair heads the Executive Committee. This committee sets the agenda for Board meetings, and reviews proposed revisions to the Bylaws and the annual conflict-of-interest reports by Board members.
b. When it is not convenient for the Board of Directors to act by Special Meeting, the Executive Committee shall have and exercise the authority of the Board in the management of the Corporation, except the power and authority to adopt, amend or repeal these Bylaws, or such other powers as may be prohibited by law, by the Articles of Incorporation or by these Bylaws.
c. The Executive Committee shall have such additional powers as the Board of Directors shall from time to time prescribe or direct by resolution; provided, however, the Executive Committee may not authorize a routine expenditure of more than $75,000 without the prior approval of the Board of Directors. Emergency expenditures in excess of this amount may be authorized by the Executive Committee, but with notification to the board as soon is reasonable following the approval.

Section 5. Audit Committee

a. Audit Committee composition: At least two (2) elected Board members, but no Corporation officers; and may include non-Board members. Finance and Investment Committee members may not constitute a majority of the Audit Committee.
b. The Finance and Investment Committee Chair shall not serve on the Audit Committee.
c. Audit Committee charge: review and recommend to the Board the engagement or discharge of the Corporation’s independent auditor, and review with the independent auditor the plans, scope, and results of the audit engagement, as prescribed by law, and report thereon to the Board.

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Section 6. Finance and Investment Committee

a. Finance and Investment Committee composition: At least two (2) elected Board members and the Treasurer and Chief Operating Officer; and may include non-Board members. The Audit Committee Chair shall not serve on the Finance and Investment Committee.
b. Finance and Investment Committee charge: consider and make recommendations to the Board on matters relating the Corporation's finances, not assigned to the Audit Committee, including investments, endowment spending policies, budget, and risk management; and establish guidelines within which investment managers must operate; monitor adherence to and performance under those guidelines; and make periodic reports to the Board.

Section 7. Governance and Nominations Committee

a. Governance and Nominations Committee composition: At least one (1) elected director and the Board Chair, and Chief Executive Officer.
b. Governance charge: review on a regular basis, the overall governance of the organization and make recommendations to the board, provide for ongoing Board education and development; develop and communicate Board expectations and responsibilities; evaluate Board performance; review Board communications and collaborations; and address Corporation leadership and Board development matters.
c. Nominations charge: review Board size, composition and leadership; determine qualifications and characteristics needed by directors; identify, screen, review, and nominate qualified persons for election to the Board of Directors; identify, screen and nominate qualified persons for election to officer and committee positions; assist in on-boarding new Directors; and plan for Board succession matters.

ARTICLE VI
OFFICERS

Section 1. Officers

The officers of the Corporation shall be an elected Board Chair, the Board Chair-Elect, the Chief Executive Officer, Chief Operating Officer, Treasurer, and Secretary.

Any person may hold more than one office, except that the Board Chair may not serve concurrently as the Secretary or Treasurer. The Corporation, at the discretion of the Board of Directors, may have additional officers.

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The Chief Executive Officer shall be the Vice President of University Relations and Development at CSULB. The CSULB Vice President of Administration and Finance shall be the Treasurer and Chief Financial Officer. The Chief Executive Officer, in consultation with the Board Chair and the University President, shall appoint the Chief Operating Officer and the Secretary.

Section 2. Elected Officers

The Board Chair of the Corporation shall be elected by the Board of Directors at its annual meeting and shall assume their offices at the beginning of the meeting that follows the annual meeting. Vacancies may be filled or new offices created and filled at any meeting of the Board of Directors.

The Board Chair shall hold office for a term of two (2) years and may serve, if reelected, for an additional full term, or for a total of four (4) consecutive years. Ex-officio directors are not eligible to serve as Board Chair.

Section 3. Removal and Resignation

Officers (in positions other than those held by ex-officio directors) may be removed either with or without cause by a majority of the directors then in office at any regular or special meeting of the Board. The holder of such office may resign at any time by giving written notice to the Board Chair, Chief Executive Officer, or the Secretary of the Corporation, and the acceptance of such resignation shall not be necessary to make it effective. Should a vacancy occur in any such office as a result of death, resignation, removal, disqualification, or any other cause, the Board may delegate the powers and duties of such office to any officer or to any director until such time as a successor for such office has been elected. A vacancy in an office held by an ex-officio director shall be filled by the successor to the respective University position.

Section 4. Board Chair

The Board Chair shall preside at all meetings of the Board, and the Executive Committee, and shall have such other powers and perform such other duties as the Board of Directors may determine from time to time.

Section 5. Board Chair – Elect

The Board Chair – Elect shall perform the duties of the Board Chair in the Board Chair's absence, including presiding at meetings of the Board of Directors and the Executive Committee, and shall have such other powers and perform such other duties as may be specified by the Board of Directors. They will be on the Executive Committee and will have no signing ability unless serving as the Board Chair. Following the term of the Board Chair, the Board-Chair Elect shall assume the next term.

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Section 6. Chief Executive Officer

The Chief Executive Officer shall oversee the programs of the Corporation in accordance with established Board policies, and subject to the direction and control of the Board of Directors. This officer shall have such formal powers and perform such other duties the Board of Directors shall determine from time to time.

Section 7. Chief Operating Officer

The Chief Operating Officer shall, under direction by the Chief Executive Officer, carry out the programs of the Corporation in accordance with established Board policies and practices. This officer shall have such duties as the Board of Directors or the Chief Executive Officer shall determine from time to time.

Section 8. Treasurer

The Treasurer shall be the Corporation's Chief Financial Officer. The Treasurer shall keep and maintain, or cause to be kept and maintained, adequate and correct books and records of accounts of the Corporation's property and business transactions. The Treasurer shall have such other powers and perform such other duties as are customarily vested in a corporation's Chief Financial Officer or as the Board of Directors may determine from time to time. In the absence or inability of the Secretary to perform his or her duties, the Treasurer is authorized to act in the place of the Secretary. Actions taken by the Treasurer on behalf of the Secretary will be reported in writing to the Board Chair, Chief Executive Officer, and Secretary in a timely manner.

Section 9. Secretary

The Secretary shall act as the clerk to the Board of Directors. The Secretary shall keep, or cause to be kept, a book of minutes at the principal office of all meetings of the Board of Directors with the time and place of holding, whether regular or special, and if special how authorized, the notice thereof given, the names of those present at Board meetings and the proceedings thereof. The Secretary shall give, or cause to be given, notice of all the meetings of the Board of Directors required by these Bylaws or by law to be given and shall have such other powers and perform such other duties as may be prescribed by the Board of Directors, or the Chief Executive Officer.

Section 10. Vice Chairs

Each committee shall have appointed a Vice Chair. In the absence or incapacity to act of the Chair, or if the office of Chair be vacant, the Vice Chair shall preside at all meetings, and shall perform the duties and exercise the power of the Chair, subject to the right of the

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Board from time to time to extend or confine such powers and duties or to assign them to others. Each Vice Chair shall have such powers and shall perform such other duties as may be assigned by the Board of Directors or the Chair.

ARTICLE VII
INDEMNIFICATION OF DIRECTORS, OFFICERS, EMPLOYEES AND OTHER AGENTS

Section 1. Right of Indemnification

The Corporation shall, to the maximum extent permitted by the California Nonprofit Corporation Law, indemnify each of its agents against all expenses, judgments, fines, settlements and other amounts actually and reasonably incurred in connection with any proceeding arising by reason of the fact that any such person is or was an agent of the Corporation. For purposes of this Article, an "agent" of the Corporation includes any person who is or was a director, officer, employee or other agent of the Corporation; or is or was serving at the request of the Corporation as a director, officer, employee or agent of another Corporation, partnership, joint venture, trust or other enterprise; or was a director, officer, employee or agent of a predecessor Corporation of the Corporation or of another enterprise at the request of such predecessor Corporation.

Section 2. Approval of Indemnity

On written request to the Board by any person seeking indemnification under Section 5328(b) or Section 5238(c) of the California Corporations Code, the Board shall promptly determine under Section 5238(e) of the California Corporations Code whether the applicable standard of conducts set forth in Section 5238(b) or Section 5238(c) has been met and, if so, the Board shall authorize indemnification.

Section 3. Advancement of Expenses

To the fullest extent permitted by law, expenses incurred by a person seeking indemnification under these bylaws in defending any proceeding covered by those Sections shall be advanced by the Corporation before final disposition of the proceeding, on receipt by the Corporation of an undertaking by or on behalf of that person that the advance will be repaid unless it is ultimately determined that the person is entitled to be indemnified by the Corporation for those expenses.

Section 4. Insurance

The Corporation shall have the right to purchase and maintain insurance on behalf of any agent of the Corporation against any liability asserted against or incurred by the agent in such capacity or arising out of the agent's status as such.

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ARTICLE VIII
RECORDS AND REPORTS

Section 1. Maintenance and Inspection of Articles of Incorporation and Bylaws

The Corporation shall keep at its principal executive office, the original or a copy of the Articles of Incorporation and Bylaws, as amended to date, which shall be open to inspection by the directors at all reasonable times during office hours.

Section 2. Maintenance and Inspection of Other Corporate Records

The accounting books, records and minutes of proceedings of the Board of Directors and any committee(s) of the Board of Directors shall be kept at such place or places designated by the Board of Directors or, in the absence of such designation, at the principal executive office of the Corporation. The minutes shall be kept in written or typed form, and the accounting books and records shall be kept either in written or typed form or in any other form capable of being converted into written, typed or printed form. The minutes and accounting books and records shall be open to inspection by any director at any reasonable time during usual business hours.

Section 3. Inspection by Directors

Designated University officials and any director shall have the absolute right at any reasonable time to inspect all books, records and documents of every kind and the physical properties of the Corporation and any subsidiary Corporation. A director's inspection may be in person or by an agent or attorney, and the right of inspection includes the right to copy and make extracts of documents.

Section 4. Annual Reports and Financial Statements

The Corporation shall cause to be sent to the directors not later than 120 days after the close of its fiscal year, an audited report containing the following information in reasonable detail:

a. The assets and liabilities, including endowment funds, of the Corporation as of the end of the fiscal year.
b. The principal changes in assets and liabilities, including endowment funds, during the fiscal year.
c. The revenue or receipts of the Corporation for the fiscal year.
d. The expenses or disbursements of the Corporation, for both general and restricted purposes, during the fiscal year.

The audited report shall also include any information required by Section 6322 of the California Corporations Code relating to annual statements of certain transactions and indemnifications.

The Corporation shall otherwise fully comply with any mandatory disclosure requirements now or hereafter in effect under the California Nonprofit Public Benefit Corporation Law.

ARTICLE IX GENERAL PROVISIONS

Section 1. Execution of Contracts

The Board of Directors may authorize one or more officers, agents or employees to enter into any contract or to execute any instrument in the name of and on behalf of the Corporation, and such authority may be general or confined to specific instances and, unless so authorized by the Board, no officer, agent or employee shall have any power or authority to bind the Corporation by any contract or engagement, to pledge its credit or to render it liable for any purpose or in any amount.

Section 2. Checks, Drafts or Other Orders for Payment of Money

All checks, drafts or other orders for payment of money, notes or other evidences of indebtedness issued in the name of or payable to the Corporation and any and all securities owned or held by the Corporation requiring signature for transfer shall be signed or endorsed by such person or persons and in such manner as from time to time shall be determined by resolution of the Board of Directors.

Section 3. Loans to Directors and Officers

The Corporation shall not make any loan of money or property to or guarantee the obligation of any director or officer, unless approved by the Attorney General of the State of California; provided, however, that the Corporation may advance money to a director or officer of the Corporation for expenses reasonably anticipated to be incurred in the performance of the duties of such director or officer, provided that in the absence of such advance such director or officer would be entitled to be reimbursed for such expenses by the Corporation.

ARTICLE X AMENDMENTS

These Bylaws may be amended at any meeting by a majority of membership of the Board of Directors at which a quorum is present, upon submission of any proposed

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amendment, repeal or revision to the Chief Executive Officer at least fifteen (15) days before the meeting at which the proposed changes are to be considered.

* * *

I HEREBY CERTIFY that I am the duly elected, qualified and acting Secretary of the Long Beach State Foundation, and that the above foregoing Bylaws were adopted as the Bylaws of the Corporation as of June 25, 2025, by the Board of Directors of this Corporation.

IN WITNESS WHEREOF, I have executed this Certificate as of _11/7/2025_____.



Christopher J. Reese
Board Secretary
Long Beach State Foundation